

THE CONSTITUTION (FOURTEENTH
AMENDMENT) BILL, 1962

(AS INTRODUCED IN LOK SABHA
ON 30TH AUGUST, 1962)

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THE CONSTITUTION (FOURTEENTH AMENDMENT)
BILL, 1962
(AS INTRODUCED IN LOK SABHA)

A
BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Thirteenth Year of the Republic of India as follows:—

1. This Act may be called the Constitution (Fourteenth Amend- Short title.
ment) Act, 1962.

5 2. In article 81 of the Constitution, in sub-clause (b) of clause (1), Amendment
for the words "twenty members", the words "twenty-five members" of article 81.
shall be substituted.

3. In the First Schedule to the Constitution, under the heading Amendment
"II. THE UNION TERRITORIES", after entry 8, the following entry of the First
10 shall be inserted, namely:— Schedule.

15 "9. Pondicherry. The territories which immediately before
the sixteenth day of August, 1962, were
comprised in the French Establishments
in India known as Pondicherry, Karikal,
Mahe and Yanam."

4. After article 239 of the Constitution, the following article Insertion of
shall be inserted, namely:— new article
239A.

20 "239A. (1) Parliament may by law create for any of the Creation of
Union territories of Himachal Pradesh, Manipur, Tripura, Goa, local Legis-
Daman and Diu, and Pondicherry— latures or
Council of
Ministers or

(a) a body, whether nominated or elected or partly both for
nominated and partly elected, to function as a Legislature certain
for the Union territory, or Union terri-
tories.

(b) a Council of Ministers,

or both with such constitution, powers and functions, in each case, as may be specified in the law.

(2) Any such law as is referred to in clause (1) shall not be deemed to be an amendment of this Constitution for the purposes of article 368 notwithstanding that it contains any provision which amends or has the effect of amending this Constitution.”

Amendment
of article
240.

5. In article 240, in clause (1),—

(a) after entry (d), the following entry shall be inserted, namely:—

“(e) Pondicherry.”;

(b) the following proviso shall be inserted at the end, namely:—

“Provided that when any body is created under article 239A to function as a Legislature for the Union territory of Goa, Daman and Diu or Pondicherry, the President shall not make any regulation for the peace, progress and good government of that Union territory with effect from the date appointed for the first meeting of the Legislature.”.

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Amendment
of the
Fourth
Schedule.

6. In the Fourth Schedule, in the Table,—

(a) after entry 20, the entry

“21. Pondicherry... 1” shall be inserted;

(b) for the figures “225”, the figures “226” shall be substituted.

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Retrospec-
tive opera-
tion of
certain
provisions.

7. Section 3 and clause (a) of section 5 shall be deemed to have come into force on the 16th day of August, 1962.

STATEMENT OF OBJECTS AND REASONS

With the ratification of the Treaty of Cession by the Governments of India and France, on the 16th August, 1962, the French establishments of Pondicherry, Karikal, Mahe and Yanam became territories of the Indian Union with effect from that date. This Bill provides for these territories being specified in the Constitution itself as a Union territory called 'Pondicherry'. Under article 81(1)(b) of the Constitution, not more than twenty members are to represent the Union territories in the House of the People. This maximum has already been reached. The Bill accordingly seeks to increase this number to twenty-five to enable representation being given immediately to Pondicherry in the House of the People and to provide for future contingencies. The Bill also provides for representation of the territory in the Council of States.

It is proposed to create Legislatures and Councils of Ministers in the Union territories of Himachal Pradesh, Manipur, Tripura, Goa, Daman and Diu and Pondicherry broadly on the pattern of the scheme which was in force in some of the Part C States before the reorganisation of the States. The Bill seeks to confer necessary legislative power on Parliament to enact laws for this purpose through a new article 239A which follows generally the provisions of article 240 as it stood before the reorganisation of the States.

LAL BAHADUR.

NEW DELHI;
The 25th August, 1962.

FINANCIAL MEMORANDUM

The Bill provides for—

(a) the maximum number of seats in the House of the People for members representing the Union territories being raised from twenty to twenty-five (clause 2);

(b) the French establishments in India known as Pondicherry, Karikal, Mahe and Yanam being specified in the Constitution itself as a Union territory (clause 3);

(c) powers being conferred on Parliament to create by law legislatures and Councils of Ministers for the Union territories (clause 4); and

(d) allocation of one seat in the Rajya Sabha to the Union territory of Pondicherry (clause 6).

2. The provision at (a), when it is fully utilised, and the provision at (d) will altogether involve an expenditure of Rs. 60,000 per annum from the Consolidated Fund of India on account of salaries and allowances of Members of Parliament.

3. Consequent on the agreement reached between the Governments of India and France regarding *de facto* transfer of former French Establishments of Pondicherry, Karikal, Mahe and Yanam, the administration of these territories was vested in the Government of India with effect from 1st November, 1954. Since that date all expenditure connected with the administration of these territories is being met out of the Consolidated Fund of India.

4. During the current budget year, the revenue of the former French establishments has been estimated at Rs. 2,31,05,500 and expenditure at about Rs. 4,45,32,000, showing a deficit of Rs. 2,14,26,500. With the integration of these areas into the Indian Union as a Union territory, the financial administration of the territory will undergo some changes. It is not, however, possible at this stage to estimate the result of such possible changes. Generally, it is estimated that a substantial part of the expenditure on the territory will continue to be met by the Union Government from the Central revenues for some years to come.

5. Some expenditure will be incurred as and when legislatures and Councils of Ministers are created for the five Union territories in pursuance of the provisions of clause 4 of the Bill. It is not possible to estimate precisely this amount but it is likely to be of the order of about Rs. 20 lakhs per annum. This expenditure will initially be met from the Consolidated Fund of the territory concerned. However, it will have to be taken into account in determining the financial assistance which may be given to these territories by way of grants from the Consolidated Fund of India.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

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81. (1) Subject to the provisions of article 331, the House of the People shall consist of—

Composition
of the House
of the
People.

(a) not more than five hundred members chosen by direct election from territorial constituencies in the States, and

(b) not more than twenty members to represent the Union territories, chosen in such manner as Parliament may be law provide.

(2) For the purposes of sub-clause (a) of clause (1),—

(a) there shall be allotted to each State a number of seats in the House of the People in such manner that the ratio between that number and the population of the State is, so far as practicable, the same for all States; and

(b) each State shall be divided into territorial constituencies in such manner that the ratio between the population of each constituency and the number of seats allotted to it is, so far as practicable, the same throughout the State.

(3) In this article, the expression "population" means the population as ascertained at the last preceding census of which the relevant figures have been published.

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240. (1) The President may make regulations for the peace, progress and good government of the Union territory of—

Power of
President to
make regula-
tions for
certain
Union terri-
tories.

(a) the Andaman and Nicobar Islands;

(b) the Laccadive, Minicoy and Amindivi Islands;

(c) Dadra and Nagar Haveli;

(d) Goa, Daman and Diu.

(2) Any regulation so made may repeal or amend any Act made by Parliament or any existing law which is for the time being applicable to the Union territory and, when promulgated by the President, shall have the same force and effect as an Act of Parliament which applies to that territory.

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FIRST SCHEDULE

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II. THE UNION TERRITORIES

<i>Name</i>	<i>Extent</i>
1. Delhi .	The territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of Delhi.
2. Himachal Pradesh	The territories which immediately before the commencement of this Constitution were being administered as if they were Chief Commissioners' Provinces under the names of Himachal Pradesh and Bilaspur.
3. Manipur	The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Manipur.
4. Tripura	The territory which immediately before the commencement of this Constitution was being administered as if it were a Chief Commissioner's Province under the name of Tripura.
5. The Andaman and Nicobar Islands.	The territory which immediately before the commencement of this Constitution was comprised in the Chief Commissioner's Province of the Andaman and Nicobar Islands.
6. The Laccadive, Minicoy and Amindivi Islands.	The territory specified in section 6 of the States Reorganisation Act, 1956.
7. Dadra and Nagar Haveli	The territory which immediately before the eleventh day of August, 1961 was comprised in Free Dadra and Nagar Haveli.
8. Goa, Daman and Diu .	The territories which immediately before the twentieth day of December, 1961 were comprised in Goa, Daman and Diu.

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FOURTH SCHEDULE

[Articles 4(1) and 80(2)]

Allocation of seats in the Council of States

To each State or Union territory specified in the first column of the following table, there shall be allotted the number of seats specified in the second column thereof opposite to that State or that Union territory, as the case may.

TABLE

1. Andhra Pradesh	18
2. Assam	7
3. Bihar	22
4. Gujarat	11
5. Kerala	9
6. Madhya Pradesh	16
7. Madras	18
8. Maharashtra	19
9. Mysore	12
10. Orissa	10
11. Punjab	11
12. Rajasthan	10
13. Uttar Pradesh	34
14. West Bengal	16
15. Jammu and Kashmir	4
16. Delhi	3
17. Himachal Pradesh	2
18. Manipur	1
19. Tripura	1
TOTAL	224

LOK SABHA

A BILL

further to amend the Constitution of India.

The President has, in pursuance of clause (3) of article 117 of the Constitution of India, recommended to Lok Sabha the consideration of the Bill.

M. N. KAUL,
Secretary.

*(Shri Lal Bahadur Shastri,
Minister of Home Affairs.)*